

Court No. - 2

Case :- WRIT - C No. - 8432 of 2018

Petitioner :- Om Prakash Sahani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinay Kumar Mishra, Manoj Kumar Rajvanshi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Ram Surat Ram (Maurya), J.

Sri Mahboob Ahmad counsel appearing on behalf of respondent-4 may take instruction in the matter as to whether deposit made by the petitioner on 13.6.2016 of Rs. 80,000/- and other deposits made by the petitioner can be treated as compliance of provision of Regulation 18.4 of Regulation 2007.

Put up as fresh on 9.3.2018.

Order Date :- 6.3.2018

Rahul /-

Court No. - 2

Case :- WRIT - C No. - 8432 of 2018

Petitioner :- Om Prakash Sahani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinay Kumar Mishra, Manoj Kumar Rajvanshi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Ram Surat Ram (Maurya), J.

As prayed, put up as fresh on 14.3.2018.

Order Date :- 9.3.2018

Jaideep/-

Court No. - 2

Case :- WRIT - C No. - 8432 of 2018

Petitioner :- Om Prakash Sahani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinay Kumar Mishra, Manoj Kumar Rajvanshi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Ram Surat Ram (Maurya), J.

As prayed, put up as fresh on 2.4.2018.

Order Date :- 21.3.2018

Rahul /-

Court No. - 33

Case :- WRIT - C No. - 8432 of 2018

Petitioner :- Om Prakash Sahani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinay Kumar Mishra, Manoj Kumar Rajvanshi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Manoj Misra, J.

This matter has been sent as a supplementary fresh case after lunch.

Counsel for the petitioner is present but Sri Mahboob Ahmad, who represents the respondents 4 and 5, is not present.

Put up, as fresh, on Monday next i.e. 09th April, 2018. In the meantime, learned counsel for the petitioner shall inform Sri Mahboob Ahmad about this order in writing.

Order Date :- 2.4.2018

AKShukla/-

Court No. - 33

Case :- WRIT - C No. - 8432 of 2018

Petitioner :- Om Prakash Sahani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinay Kumar Mishra, Manoj Kumar Rajvanshi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Manoj Misra, J.

Learned counsel for the petitioner submitted that the provision for testing defective meter as provided by the U.P. Electricity Supply Code, 2005 has not been followed and therefore the demand raised by the electricity department for a period of 80 months on the basis of a slow meter is not legally sustainable.

Learned Standing Counsel has accepted notice on behalf of respondent no.1 and Sri Mahboob Ahmad has accepted notice on behalf of respondents 4 and 5. They pray for and are allowed three weeks time to file counter affidavit. One week thereafter shall be for the petitioner to file rejoinder affidavit.

List this petition on 10th May, 2018.

Till the next date of listing, no coercive step shall be taken against the petitioner pursuant to demand raised by the department for the concerned period.

Order Date :- 10.4.2018.

Rks.

Court No. - 33

Case :- WRIT - C No. - 8432 of 2018

Petitioner :- Om Prakash Sahani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinay Kumar Mishra, Manoj Kumar Rajvanshi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Manoj Misra, J.

Learned Standing Counsel prays for and is allowed three weeks further time to file counter affidavit.

List thereafter.

Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 10.5.2018

AKShukla/-

Court No. - 33

Case :- WRIT - C No. - 8432 of 2018

Petitioner :- Om Prakash Sahani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinay Kumar Mishra, Manoj Kumar Rajvanshi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Manoj Misra, J.

List in the third week of July, 2018.

Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 31.5.2018

AKShukla/-

Court No. - 36

Case :- WRIT - C No. - 8432 of 2018

Petitioner :- Om Prakash Sahani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinay Kumar Mishra, Manoj Kumar Rajvanshi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Neeraj Tiwari, J.

Vide earlier order of this Court dated 10.04.2018, three weeks time was granted to the respondents to file counter affidavit, but till date no counter affidavit has been filed.

Two weeks' further time is granted to the respondents to file counter affidavit.

List this case after two weeks. Till the next date of listing, interim order granted earlier shall continue.

Learned counsel for the petitioner is directed to inform in writing to learned counsel for the respondents about the order passed today.

Order Date :- 16.7.2018

Sartaj

Court No. - 32

Case :- WRIT - C No. - 8432 of 2018

Petitioner :- Om Prakash Sahani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinay Kumar Mishra, Manoj Kumar Rajvanshi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Rohit Ranjan Agarwal, J.

A copy of supplementary affidavit has been handed over to Sri Udit Chandra, learned counsel appearing for the electricity department today in the Court.

He prays for and is granted one week time to seek instructions in the matter and also file counter affidavit.

Learned counsel for the petitioner states that despite interim order continuing in the matter the electricity department has disconnected the electric connection of petitioner.

Sri Chandra, learned counsel, shall seek instructions from the department as to why the interim order passed by this Court was not followed by the authorities.

List this matter in the additional cause list on 29.10.2021.

Interim order, granted earlier, to continue till then.

When the matter is listed next the name of Sri Udit Chandra be shown in the cause list as learned counsel for the respondents.

Order Date :- 23.10.2021

Shekhar

Court No. - 32

Case :- WRIT - C No. - 8432 of 2018

Petitioner :- Om Prakash Sahani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinay Kumar Mishra, Manoj Kumar Rajvanshi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Rohit Ranjan Agarwal, J.

Supplementary counter affidavit has been filed by Sri Udit Chandra, counsel for the respondent-Electricity Department, which is taken on record.

Sri Chandra states that the electricity connection has been restored.

List this matter on 10.11.2021 showing the name of Sri Udit Chandra, Advocate, from the side of respondent.

Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 29.10.2021

Kushal

Court No. - 6

Case :- WRIT - C No. - 8432 of 2018

Petitioner :- Om Prakash Sahani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vinay Kumar Mishra, Manoj Kumar Rajvanshi

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Rohit Ranjan Agarwal, J.

Despite the best effort of the Court, learned counsel for the petitioner is not ready to argue the matter and on one pretext or the other tried to get the matter adjourned.

List this case after three months.

It is made clear that interim order, passed earlier, is not extended.

Order Date :- 10.11.2021

Shekhar